

Shamshul Hasan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 December 2019 · WRIT-C No. 42601 of 2019 · WRIT - C No. 42601 of 2019 · **Writ disposed; petitioner to object before EE; s.127 if aggrieved.**

HEADNOTE

On a certiorari challenge to a demand notice of Rs 23,49,936, the Court did not quash the demand or examine Supply Code compliance. It directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking final order within four weeks, stayed coercive action for six weeks or until disposal of the objection, relegated any challenge to that final order to an appeal under Section 127 of the Electricity Act, 2003, and provided that non-appearance would revive the recovery citation.

FACTUAL SUMMARY

Shamshul Hasan challenged a demand notice dated 23 November 2019 issued by the Executive Engineer requiring payment of Rs 23,49,936 by 23 December 2019. He alleged that the electricity department was taking coercive recovery without any opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and for the Electricity Department were heard. The Court did not examine the demand on merits.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to section 127 after speaking final order on demand

HOLDING

A consumer seeking certiorari against a demand notice on the plea of coercive recovery without hearing and without following the Supply Code is not granted a merits quash. The Court directed appearance before the Executive Engineer with objections and evidence, a speaking and reasoned final order within four weeks, a limited stay of coercive action, and, if the consumer is aggrieved by that final order, an appeal under Section 127 of the Electricity Act, 2003. Failure to appear and object revives the recovery citation. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing the Executive Engineer to pass a speaking final order on the consumer's objections to the demand notice, the Court left any challenge to that final order to an appeal under Section 127 and did not decide the demand on merits. ¶ 1

alternative-remedy-section-127-appeal The writ was disposed of with a direction that if the petitioner is aggrieved by the Executive Engineer's final order, it will be open to file an appeal under Section 127 of the Electricity Act, 2003 in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE DEMAND NOTICE DATED 23.11.2019 FOR RS 23,49,936

The Court did not examine the legality or amount of the demand. ¶ 1

NOT DECIDED — WHETHER THE U.P. ELECTRICITY SUPPLY CODE, 2005 HAD BEEN FOLLOWED

The petitioner's Supply Code non-compliance plea was not decided; the Court only directed a hearing and a speaking order. ¶ 1

